

ACME CLOUD SERVICES

Master Services Agreement and Employee Handbook

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This document consolidates the contractual terms governing the provision of Acme Cloud Services to enterprise customers, together with the internal policies that apply to all Acme employees and contractors. It is maintained by the Legal and People Operations functions and is reviewed at least annually.

1. Scope and interpretation

Sections 2 to 5 form the Master Services Agreement (the Agreement) between Acme Cloud Services Limited (Acme) and the customer identified in the applicable Order Form (the Customer). Sections 6 to 9 constitute internal policy and do not create contractual obligations towards the Customer.

Capitalised terms not defined in this document carry the meaning given to them in the Order Form. Where a conflict arises between this document and an executed Order Form, the Order Form prevails.

2. Structure of this document

Section 3 covers commercial terms, including termination and payment. Section 4 covers service levels and liability. Section 6 covers leave entitlement and working arrangements. Section 7 covers information security. Section 8 covers data protection and retention.

3. Commercial terms

3.1 Term and termination

The Agreement commences on the Effective Date and continues for an initial term of twelve (12) months, renewing automatically for successive twelve (12) month periods unless terminated in accordance with this section.

Either party may terminate the agreement for convenience by giving thirty (30) days written notice to the other party. Notice must be served in writing to the contact address recorded in the Order Form; notice served by email is effective only when acknowledged in writing by the receiving party.

Either party may terminate the Agreement with immediate effect if the other party commits a material breach that remains unremedied fourteen (14) days after written notice of the breach, or if the other party becomes insolvent.

3.2 Fees and payment

Subscription fees are invoiced monthly in advance. Usage-based charges are invoiced monthly in arrears, based on metered consumption recorded by the Acme control plane.

Invoices are payable within fourteen (14) days of the invoice date. Amounts unpaid after the due date accrue interest at four per cent (4%) per annum above the base rate of the European Central Bank, accruing daily from the due date until payment is received in full.

Fees are exclusive of value added tax. The Customer may dispute an invoice in good faith by notifying Acme within seven (7) days of receipt, setting out the disputed items in reasonable detail.

4. Service levels and liability

4.1 Availability commitment

The service level agreement commits to 99.5% monthly uptime for the production control plane and the data plane, measured over a calendar month and excluding scheduled maintenance windows notified at least five (5) business days in advance.

Where measured availability falls below the committed level, the Customer is entitled to service credits of five per cent (5%) of the monthly subscription fee for each full percentage point below the commitment, capped at twenty-five per cent (25%) of that monthly fee. Service credits are the Customer's sole remedy for availability failures.

Scheduled maintenance is performed between 01:00 and 05:00 UTC on Sundays and is limited to eight (8) hours per calendar month.

4.2 Limitation of liability

Aggregate liability is capped at the total fees paid in the twelve (12) months preceding the claim. Neither party is liable for indirect or consequential loss, loss of profit, loss of anticipated savings, or loss of goodwill.

The liability cap does not apply to liability for death or personal injury caused by negligence, to fraud or fraudulent misrepresentation, or to a party's indemnity obligations in respect of third-party intellectual property claims.

4.3 Support response

Priority 1 incidents receive an initial response within one (1) hour, twenty-four hours a day. Priority 2 incidents receive an initial response within four (4) business hours.

6. Working arrangements and leave

6.1 Annual leave

Full-time employees receive twenty-six (26) working days of paid annual leave per calendar year, in addition to public holidays observed in their country of employment. Part-time employees accrue leave on a pro rata basis.

Up to five (5) unused leave days may be carried over into the following calendar year and must be taken before 31 March. Leave requests are submitted through the People Operations portal and require approval from the direct line manager.

6.2 Remote working

Employees may work remotely for up to three (3) days per week without prior approval, provided that team on-site days recorded in the team charter are respected.

Exceptions to the remote working policy require written approval from the department head and the People Operations lead. This includes fully remote arrangements, and any period of work performed from a country other than the country of employment. Requests are assessed against tax, immigration and information security constraints.

Work performed from a country other than the country of employment is limited to twenty (20) working days per calendar year and must be registered in advance with the mobility team.

7. Information security

7.1 Incident reporting

All employees and contractors are responsible for reporting suspected security incidents. Suspected security incidents must be reported to the Security Operations Centre within one hour of detection, using the incident hotline or the dedicated channel in the corporate messaging platform.

A security incident includes, without limitation: suspected unauthorised access to systems or data, loss or theft of a device holding company data, successful or suspected phishing, and accidental disclosure of confidential information.

The Security Operations Centre triages every report within one (1) hour and escalates confirmed incidents to the Incident Commander. Employees must not attempt to investigate or remediate a suspected compromise themselves.

8. Data protection and retention

8.1 Retention of personal data

Personal data is deleted or anonymised within ninety (90) days of account closure, unless a legal retention obligation applies. Where a statutory obligation requires longer retention, the data is placed under legal hold and access is restricted to the Legal function.

Backups containing personal data are retained for thirty-five (35) days and are overwritten on a rolling basis. Data subject access requests are acknowledged within five (5) business days and fulfilled within one (1) calendar month.